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The White House
1600 Pennsylvania Avenue
Washington, DC 20500

Attn: Office of Science and Technology Policy ("OSTP")

VIA EMAIL

March 18, 2025

Dear White House OSTP Team,

Comments in response to the request for information on the development of an AI action plan

We are writing in response to the request for information on the development of an AI action plan, issued by the National Science Foundation (NSF) in collaboration with the Networking and Information Technology Research and Development (NITRD), dated February 2, 2025.

We are pleased to have the opportunity to share our views on the AI Action Plan to be developed pursuant to President Trump's Executive Order 14179 (the "AI EO"). Those views are set out in this letter in the form of four recommendations.

Background on Enzai

Enzai provides an AI governance, risk and compliance software solution that helps organizations understand and manage the risks that come with AI, while meeting their emerging regulatory obligations. Our customers are large, international organizations (including members of the Fortune 500) around the world that are seeking to make the most of the opportunity with AI, in a secure and sustainable way. Our team has deep expertise in developing intuitive and comprehensive AI governance frameworks, covering all the major laws and standards in this space such as Colorado's SB 24-205 (known informally as the Colorado AI Act) and the NIST AI Risk Management Framework.

Recommendations

We believe in AI's immense potential to improve people's lives and drive economic growth. We acknowledge the Trump administration's emphasis on enabling private sector innovation. In this section we have set out four recommendations, each of which has been informed by our close work with private sector organizations as they seek to deploy AI systems with confidence while mitigating their risks.

It is important to note that these recommendations reflect our view that AI governance is a key enabler of AI adoption. From our perspective, AI governance is the set of policies, processes and tools that guide the safe and sustainable development and use of AI technologies. With a strong AI governance framework in place, an organization can build trust with its stakeholders while also ensuring it is making the most of the AI opportunity. This trust removes uncertainty and lowers barriers to AI deployment.

Our four recommendations are set out below.

Recommendation 1: articulate a positive vision for how AI can help people.

AI has demonstrated enormous potential in healthcare, business innovation, education and many other fields. Given the Trump administration's focus on "AI opportunity", the AI Action Plan should articulate a positive vision for how AI can help people.

This positive vision should include specific outcomes, such as:

- Improving healthcare, while driving down the costs of treatments and medications

By quickly analyzing large, complex data sets, AI has the potential to accelerate drug discovery, enable physicians to tailor treatments to each person and detect anomalies like tumors and lesions faster and more accurately than existing methods. Many leading labs have already introduced 'deep research' functionality to support such efforts.

- Boosting the competitiveness of small businesses

By analyzing large troves of data at low costs, AI has the potential to make certain business insights, that were previously only available to the largest organizations, accessible to businesses of all sizes. These insights can inform, for example, the identification of new customer segments, the development of new product features based on customer interactions and the ability to rapidly locate and recruit employees and

partner organizations.

- Enhancing educational outcomes

By tailoring educational experiences to each student's personality, ways of learning, resources, life circumstances and interests, AI has the potential to enhance educational outcomes at scale. Everything from a course's mode of delivery, its content and its pacing, could be personalized to boost meaningful engagement and retention. AI also has the potential to develop personalized assessments, to help spot and address fundamental knowledge gaps quickly rather than waiting for results from scheduled tests.

It is also important to address the concerns about AI's impact on the global jobs market, and employment opportunities with the United States. While these concerns are legitimate, we feel strongly that they will not materialize if the AI opportunity is managed correctly.

History shows that technological revolutions ultimately create more jobs than they displace. AI is poised to generate entirely new categories of work that don't exist today, much as the internet created roles like social media manager, SEO specialist and app developer. Rather than simply automating existing tasks, AI will augment human capabilities, enabling workers to focus on higher-value activities requiring creativity, emotional intelligence and complex problem-solving.

This transition will create demand for AI trainers, explainability experts, ethics advisors and human-AI collaboration specialists. By positioning the United States as a leader in responsible AI innovation, we can ensure these new economic opportunities benefit American workers and businesses first, creating a new generation of middle-class jobs while maintaining the United States' global competitive edge.

Recommendation 2: provide American leadership and funding for international research efforts related to AI.

Due to their advanced and rapidly improving capabilities, AI systems pose a unique set of challenges that transcend industries and borders. Given America's strengths in AI, American leadership and funding for AI research efforts are critically important to ensure that AI has the positive impact on the world that we all want to see.

Therefore, once the administration has defined its positive vision for the societal benefits of AI, it should support this vision by leading and funding specific AI-related projects at the frontier of the field, with support from international

collaborators. These projects should focus on both thematic areas (like explainability research) and sectoral areas (like life sciences), with objectives that support the administration's vision.

One outstanding model for such projects is the Human Genome Project ("HGP"), a bipartisan 13-year effort to identify all the base pairs of the human genome. Though Americans led the HGP, participants from the United Kingdom, Japan, France, Germany and China also made significant contributions in funding and expertise. HGP insights enabled significant private sector innovation in healthcare and life sciences. Thanks to the HGP, researchers were able to rapidly sequence the Covid-19 virus and develop vaccines in 2020.

Developing, funding and obtaining international buy-in for specific AI-related projects will promote American leadership internationally and support private sector innovation in the long term, while addressing the unique set of challenges posed by AI.

Recommendation 3: clarify rules for the federal government's use of AI.

Thanks to OMB Memoranda M-24-10 and M-24-18 (the "OMB AI Guidance"), federal agencies have compiled and published their AI inventories, appointed Chief AI Officers and convened AI Governance Boards. These developments have been a net positive for the AI industry in America, and the Trump administration should build upon this momentum as it works to revise the OMB AI Guidance (as envisioned by the AI EO).

Note that even though the considerations, principles, characteristics and contract terms outlined in the OMB AI Guidance will only apply within government, these documents send out a clear signal to the private sector which helps to shape the market through government procurement efforts.

The following steps can help improve the effectiveness of the OMB AI Guidance:

- Standardize responsible AI principles and characteristics across agencies

While M-24-10 Section 4(e) recognizes the efficiencies to be gained from implementing the memorandum's requirements in a consistent manner across federal agencies and M-24-18 Section 3(b) describes interagency information and knowledge sharing efforts related to AI acquisition, the OMB AI Guidance stops short of standardizing responsible AI principles and characteristics across agencies.

As a result, agencies including the US Department of Commerce, the US Food and Drug Administration and the US Department of Defense each outline different responsible AI principles and characteristics across their various policy instruments. By including common responsible AI principles and characteristics in the reworked memoranda, the administration can foster inter-agency collaboration, while reducing friction for vendors supplying AI systems to the government.

This streamlined approach would facilitate quicker AI adoption across the federal government, which would allow industry to be able to iterate on and improve their AI solutions in a much more efficient manner.

- Include sample contract terms for providers of safety-impacting and rights-impacting AI systems

M-24-10 Section 5 provides descriptions and risk frameworks for safety-impacting and rights-impacting AI systems. It also provides the elements of AI impact assessments for such AI systems, while acknowledging that each assessment should be tailored to agency needs, AI system characteristics and use case contexts.

The administration should bolster M-24-10 by supporting its risk framework with voluntary, sample contract terms for vendors supplying rights- and/or safety-impacting AI systems. By clarifying how, specifically, such vendors may be able to demonstrate alignment with the memorandum's requirements, the administration can reduce AI risks to rights and safety, provide clarity for vendors and drive efficiency for government agencies.

- List agency AI marketplaces that enable faster procurement of AI

For organizations wishing to sell AI systems to the government, it frequently takes longer than a year to become compliant with the requirements of the Federal Risk and Authorization Management Program (FedRAMP) program. The compliance process also imposes a significant financial burden, which can be difficult for smaller organizations to meet. This makes it difficult for the government to experiment with and procure AI systems from smaller, yet highly innovative providers who lack government contracting expertise.

Some federal agencies have led the way to develop marketplaces that rely on faster, alternative procurement vehicles. For example, the US Department of Defense developed the Tradewinds marketplace using Other Transaction Authority (OTA) to rapidly procure AI systems, while the US Department of State announced that it is developing a similar

marketplace. M-24-18 should both list specific AI marketplaces like Tradewinds, to bolster their visibility, and encourage agencies developing such marketplaces to extend access to other agencies, to promote efficiency and faster procurement.

Recommendation 4: access to data.

Access to high-quality, diverse, and representative data is the foundation of effective AI systems. While private companies have made significant investments in proprietary datasets, broader innovation requires addressing structural challenges to data access that currently limit AI development, especially for smaller companies and researchers.

The administration should take the following steps to enable responsible data access while protecting privacy and intellectual property:

- **Create public-private data partnerships**

Develop a framework for public-private data partnerships that enables companies to securely share non-sensitive data for specific research purposes.

These partnerships could focus on high-impact domains like healthcare, climate science and transportation where collaborative data sharing can accelerate breakthroughs that benefit society while maintaining competitive advantages for participating organizations.

- **Establish federal data repositories with clear governance**

Direct federal agencies to create and maintain high-quality, anonymized datasets in their domains of expertise, with clear access protocols and governance frameworks.

These repositories should include documentation on data provenance, collection methodologies and known limitations to ensure responsible use.

For example, the National Institutes of Health could expand its data repositories for biomedical research, while the US Department of Transportation could develop standardized datasets for autonomous vehicle development.

- **Develop privacy-preserving data access techniques**



Fund research and development of advanced privacy-preserving technologies such as federated learning, differential privacy and synthetic data generation.

These technologies allow organizations to derive insights from data without exposing sensitive information, enabling broader participation in the AI ecosystem while protecting individual privacy rights. The administration should provide technical standards and best practices for implementing these techniques across industries.

By addressing these data access challenges through thoughtful policy interventions, the administration can unlock innovation across the AI ecosystem while ensuring that data usage remains responsible and aligned with American values of privacy and fairness.

Thank you again for the opportunity to comment and for your work in this crucially important area. If you would like to discuss any of these issues further, please get in touch by e-mail at [REDACTED]

We look forward to learning more about the AI Action Plan in the coming months.

Sincerely,

The Enzai team

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